

Court No. - 3

Case :- WRIT - C No. - 3698 of 2022

Petitioner :- Vivekanand Tiwari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mohd. Parvez, Kailash Prakash Pandey

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and the learned Standing Counsel for the respondent no.1 and learned counsel for the respondent nos.2 and 3.

This writ petition has been filed praying for the following reliefs:-

"a) Issue a writ, order or direction in the nature of certiorari quashing the impugned show cause notice dated 04/12/2021 issued by the Respondent No.3, the Executive Engineer, Electricity Urban Distribution Division, Rambagh, Prayagraj, enclosed as Annexure-1 to this writ petition.

b) Issue a writ, order or direction in the nature of certiorari quashing the impugned provisional assessment notice dated 15/11/2021, by which an amount of Rs.1,76,575/- is demanded from the petitioner, issued by the Respondent No.3, the Executive Engineer, Electricity Urban Distribution Division, Rambagh, Prayagraj, enclosed as Annexure-2 to this writ petition.

c) Issue a writ, order or direction in the nature of Mandamus directing the Respondent No.3 to correct all the outstanding bills of the petitioner, in accordance with the provision of 6.8 of the U.P. Electricity Supply Code-2005, read with Section 126 of Electricity Act-2003."

Learned counsel for the respondent no.2 and 3, on instructions, states that the petitioner may submit his objection before the respondent no.3 within a week which shall be considered and appropriate decision in accordance with law shall be taken after affording him a reasonable opportunity of hearing and till the decision is taken no coercive action shall be taken against the petitioner.

In view of the aforesaid statement made by learned counsel for the respondent nos.2 and 3, and without expressing any opinion of merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection before the respondent no.3 within a week alongwith a copy of this order. In the event, such an objection is submitted, the respondent no.3 shall consider the objection and shall pass a speaking and reasoned order in accordance with law, within next two weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of three weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken by the respondents against the petitioner.

On deposit of dues and on completion of necessary formalities, the electricity connection of the petitioner shall be restored in accordance with law, if there is no legal impediment.

Order Date :- 23.2.2022
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